

24STCV03642 24STCV03642

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-08-07

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Case Number: 24STCV03642 Hearing Date: August 7, 2026 Dept: 413

TENTATIVE RULING

Hearing

Date: August 7, 2026

Antonia Rmoero v. General Motors, LLC, Case No. 24STCV03642

Ruling: Plaintiff Antonio Romero

("Plaintiff")'s Motion for Attorneys' Fees, Costs, and Expenses (CRS # 407926234489) is granted as modified.

Plaintiff is

ordered to submit a proposed order that adheres to the Court's reductions of attorneys' fees by August __, 2026. The

Court sets an Order to Show Cause re Submission of Attorney Fees Order for _____, 2026, at 8:30AM.

Plaintiff

Antonio Romero ("Plaintiff")'s Motion for Attorneys' Fees, Costs, and Expenses is called for hearing.

Plaintiff's

Motion for Attorneys' Fees, Costs, and Expenses is heard and argued.

The motion

includes costs and expenses pursuant to the settlement agreement by the parties.

Plaintiff

has filed a reply that includes a request for judicial notice and a supplemental declaration in support of the motion. The general rule in regard to motions precludes consideration of new evidence submitted with a reply. (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537.) “This rule is based on the same solid logic applied in the appellate courts, specifically, that ‘[p]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.’ ” (Id. at 1538 [citing American Drug Stores, Inc. v. Stroh (1992) 10 Cal.App.4th 1446, 1453; Browne v. County of Tehama (2013) 213 Cal.App.4th 704, 720, fn. 10].) The Court does not consider the request for judicial notice and a supplemental declaration in support of the motion filed with the Reply.

I.

Attorneys’

Fees

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prevailing party is entitled to recover costs, including attorneys’ fees where there is a statutory or contractual basis. (Code Civ. Proc., §§ 1032(a)(4), 1032(b), 1033.5.) In Song-Beverly claims, if the buyer of a consumer good who is damaged by a failure to comply with the Song-Beverly Act prevails in an action under this section, the buyer may recover as part of the judgment the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, which were reasonably incurred by the buyer in the action. (Civ. Code § 1794(d).)

The

correct measure for attorneys’ fees is the market value of the services, and “[t]his standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel.” (Nemecek & Cole v. Horn (2012) 208 Cal.App.4th 641, 651.) “Absent an arbitrary ruling, case law gives a trial judge great discretion in using their knowledge and experience to assess the value of services performed by attorneys in the case their court even without introduction of expert testimony. (Marshall v. Webster (2020) 54 Cal.App.5th 275, 287 [internal citations omitted]; Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 [“The ‘experienced trial judge is the best judge of the value of professional services rendered in his court, and

while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." ' '").)

Plaintiff

requests a total award for attorney fees, costs, and expenses in the amount of:
\$65,743.81 [\$46,441.00 (111.1 hours of billable time) + 1.3 multiplier
(\$5,370.51) + \$2,400.00 (estimated time on this motion) + 1.3 multiplier for
estimated time (\$720.00) + \$2,250.51 (costs and expenses)].

The Court

makes the following changes:

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loadstar multiplier is not included as, although this case was taken on a contingency basis, it is neither novel nor complex for a Song-Beverly case.

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Jennifer

Romo, Clarence Serrano, Katelyn Gilkey, Walter Orellana, Oliver Thomas, Virginia Walls, and Caletth Ibarra are presented to be paralegals, with rates between \$200.00 to \$270.00 per hour (see Mtn. at Decl. Laura E. Goolsby at Exh. A, Opp. 7:5-12). The Court reduces the paralegal rates to \$200.00 per hour for all of them.

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The

Court is aware of the extensive use of templates in Song-Beverly motor vehicle actions. Because of this, the following reductions are made:

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The

time billed for the Complaint is reduced from 2.0 hours to 1.5 hours; and

o

The

Motion for Leave to Amend is reduced from 4.5 hours to 4 hours;

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The

time spent on this motion is presented as 3.8 hours in connection with the moving papers and an addition 4.0 hours in anticipated time for a total of 7.8 hours. The Court reduces the time spent on this motion to 5.8 hours.

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Goolsby

billed 1.7 hours to draft an “[e]mail in/out: re client dec iso opp to MSJ and next steps re same.” (Decl. Goolsby at Exh. A., p. 15.) The Court reduces this amount to 1.0 hour.

II.

Costs

and Expenses

GM asks

for a reduction of the following costs: filing fees in the amount of \$151.47 for Plaintiff’s Motion for Leave to Amend, \$60.00 in courtesy copy fees, and \$32.39 in connection with convenience fees for credit card payments.

Code of Civil

Procedure section 1033.5(c)(1) provides: “Costs are allowable if incurred, whether or not paid.” Here, the filing fees are an allowable cost. (See Code Civ. Proc. § 1033.5(a)(1).) The Court does not tax the filing fee amount of \$151.47 for Plaintiff’s Motion for Leave to Amend. The cost is reasonable as, only after such a motion, settlement was reached.

Regarding

the \$60.00 in courtesy copy fees and \$32.39 in connection with convenience fees for credit card payments, the Court agrees with Plaintiff’s reasoning: the “courtesy copy” and nominal processing fees are routine litigation expenses incidental to motion practice, and GM cites no authority otherwise. Such costs “may be allowed or denied in the court’s discretion.” (Code Civ. Proc. § 1033.5(c)(4).) The amounts requested for these costs do not appear unreasonable.

Accordingly,

Plaintiff’s requested costs and expenses are granted without reduction.

Plaintiff

Antonio Romero (“Plaintiff”)’s Motion for Attorneys’ Fees, Costs, and Expenses

(CRS # 407926234489) is granted as modified.

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ordered to submit a proposed order that adheres to the Court's reductions of attorneys' fees by August __, 2026. The

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